

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF RICHMOND-----X  
EMMANUEL JALLAH,

Plaintiff,

- against -

THE CITY OF NEW YORK, the NEW YORK CITY  
POLICE DEPARTMENT, P.O. AHMED FAISAL, P.O.  
AARON ESPADA, P.O. YALCIN VOLKAN, and P.O.  
JOHN DOE nos. 1-20,Defendants.  
-----X

Index No.:

Date Purchased:

**Summons**Plaintiff designates Richmond  
County as place of trial.

The basis of venue is:

Plaintiff's residence and location  
of incident.

Plaintiff resides at:

225 Park Hill Avenue, Richmond  
County. The location of the  
incident is Richmond County.**To the above named Defendant(s):**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, of if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Nassau County, New York  
July 11, 2019

Yours, etc.,

  
\_\_\_\_\_  
Nora Constance Marino, Esq.  
Attorney for Plaintiff175 East Shore Road, Suite 230  
Great Neck, New York 11023  
516.829.8399  
File No.: 1626Service to:  
See next page:

CITY OF NEW YORK  
OFFICE OF THE COMPTROLLER  
One Centre Street  
Room 1200  
New York, NY 10007-2341

CITY OF NEW YORK  
LAW DEPARTMENT  
100 Church Street  
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT  
One Police Plaza  
New York, NY 10038

P.O. AHMED FAISAL  
One Police Plaza  
New York, NY 10038

P.O. AARON ESPADA  
One Police Plaza  
New York, NY 10038

P.O. YALCIN VOLKAN  
One Police Plaza  
New York, NY 10038

P.O. JOHN DOE nos. 1-20  
One Police Plaza  
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF RICHMOND

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EMMANUEL JALLAH,

Plaintiff,

- against -

THE CITY OF NEW YORK, the NEW YORK CITY  
POLICE DEPARTMENT, P.O. AHMED FAISAL,  
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and P.O. JOHN DOE nos. 1-20,

Defendants.  
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Index No.:

VERIFIED COMPLAINT

Plaintiff, by his attorney, NORA CONSTANCE MARINO, ESQ. complaining of  
the Defendants herein, respectfully show this Court, and allege as follows:

**PRELIMINARY STATEMENT**

1. That at all times hereinafter mentioned, the Plaintiff EMMANUEL  
JALLAH ("JALLAH") was and still is a resident of the County of Richmond, State of  
New York.

2. That at all times hereinafter mentioned, defendant CITY OF NEW  
YORK ("CITY") was and still is a municipal corporation, duly organized and existing  
under and by virtue of the law of the State of New York.

3. That at all times hereinafter mentioned, defendant NEW YORK CITY  
POLICE DEPARTMENT ("NYPD") was and still is a municipal corporation and/or  
municipal police department, duly organized and existing under and by virtue of  
the law of the State of New York.

4. That at all times hereinafter mentioned, defendants P.O. AHMED FAISAL, P.O. AARON ESPADA, P.O. YALCIN VOLKAN, and P.O. JOHN DOE nos. 1-20, were agents, servants, and/or employees of defendants City and NYPD; were members of the NYPD; and were acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for defendants City and NYPD.

5. That all times hereinafter mentioned defendants City and NYPD employed police officers and jailors and others hereafter mentioned in this complaint.

6. That at all times hereinafter mentioned, defendants City and NYPD owned, maintained, supervised, managed, operated, inspected and controlled the various jails, police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the complaint.

7. That at all times hereinafter mentioned, all of the actions of the officers allege herein were done within the scope and course of their employment with defendants City and NYPD and under color of the state law.

8. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, plaintiff herein served a Notice of Claim in writing upon the defendants THE CITY OF NEW YORK.

9. That a 50-H hearing was held for the plaintiff.

10. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the plaintiff.

FACTS

11. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

12. On September 4, 2018, at approximately 9:45 pm, plaintiff was lawfully riding a bicycle with two friends who were also riding bicycles on Targee Street, between Sobel Ct. and Cliffside Avenue, County of Richmond, City of New York. Targee Street is a one way street; plaintiff was riding his bicycle on the street, not on the sidewalk, facing traffic; traffic was to his right (he was on the left side of the street).

13. For no reason, apparent or otherwise, plaintiff was approached by two police officers. For no reason, the police officers grabbed plaintiff by his arms and handcuffed him and proceeded to arrest him. For no apparent reason these officers also called for additional police officers to respond. Plaintiff was inquiring as to why he was being arrested, why he was being physically restrained, as he violated no laws. More marked and unmarked police vehicles, and officers, including a supervisor, arrived on the scene and several more officers participated in the detention and/or arrest; no officer intervened to stop the illegal detention or arrest. The police officers simply said, "relax", and provided no viable reason for the stop or the detention. At one point, the supervisor pointed a firearm at the plaintiff, although plaintiff was already in custody and posing no threat to anyone. At no time did plaintiff resist arrest, nor did plaintiff obstruct governmental administration, nor act in a disorderly

manner.

14. Defendants walked plaintiff to a police vehicle, as plaintiff continued to ask why he was being arrested. One of the officers stated, "I don't know why." Another officer stated "you're probably going to get a summons." Finally, when plaintiff was being placed in the police car he was informed by an officer that plaintiff was being arrested for riding his bicycle on the sidewalk. Plaintiff denied this accusation, informing defendants that he was not at any time riding a bicycle on the sidewalk, but rather, was riding a bicycle in the street.

15. Defendants took plaintiff in a marked police vehicle to the 120<sup>th</sup> Precinct, where he was kept overnight in a cell. The following day, plaintiff was taken to court, at which time he learned that he was being charged with not only prohibited bicycle operation on a sidewalk, but also resisting arrest, obstructing governmental administration in the 2<sup>nd</sup> degree, and disorderly conduct. Plaintiff entered a plea of not guilty and was released on his own recognizance.

16. One of the arresting officers referred to plaintiff by his last name "Jallah" while plaintiff was being handcuffed and placed in the police vehicle, without plaintiff ever informing defendants what his name was. Neither of the two friends riding bicycles with plaintiff were stopped or questioned by the police.

17. It is alleged that defendants targeted plaintiff in retaliation for his successful repudiation of criminal charges that were falsely presented against plaintiff and a codefendant in the matter of People v Emmanuel Jallah, CR-002598-RI (2018).

18. Defendants targeted plaintiff further for being a witness of police misconduct in another high profile case on or around February 28, 2018, known as People v Lasou Kuyateh, in which the police appear to have planted contraband in Mr. Kuyateh's vehicle in which plaintiff was a passenger and/or witness.

19. Defendants were fully aware that plaintiff committed no crime warranting an arrest, as even if it were true that plaintiff was in fact riding a bicycle on a sidewalk, this is not a violation that warrants being handcuffed and arrested.

**FIRST CAUSE OF ACTION**  
**FALSE ARREST**

20. Plaintiffs repeats, reiterates, and realleges all of the allegations set forth above.

21. Defendants used excessive force, assaulted, punched, kicked, handcuffed, threatened, and deprived plaintiffs of his liberty, freedom, and constitutional rights, despite the fact that plaintiff had not committed a crime or violation.

22. That the defendant officers arrested plaintiff despite the fact that they knew that the no crimes or violations were committed and that there was



no probable cause or justification for such an arrest and/or detention and/or videotaping.

23. That at all times, the officers acted within the scope of their employment of defendants NYPD and under the authority of color of state law as police officers.

24. The aforescribed constitutional violations are all actionable under and pursuant to New York State Law, the New York State and Federal Constitution.

25. Although the defendants knew that detaining and arresting plaintiffs when they had no right to do so, in violation of plaintiffs' constitutional rights, the defendants criminally processed the plaintiff, generating misleading and false accusatory instruments in order to lay charges against plaintiff, even though defendants knew or had reason to know that they were making an illegal arrest.

26. Defendants also illegally and unnecessarily detained the plaintiff without any justification to do so.

27. By virtue of the foregoing, plaintiff has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

**SECOND CAUSE OF ACTION**  
**NEGLIGENT HIRING, TRAINING, SUPERVISION, AND**  
**RETENTION UNDER NEW YORK STATE LAW**

28. Plaintiff repeats, reiterates and realleges all of the allegations set



forth above.

29. Defendant NYPD negligently hired, trained, supervised, and retained the defendant officers; Defendant NYPD was careless and reckless in the hiring, training, supervision, overseeing, and retention of Defendant officers.

30. The individually named defendants and the John Does were acting in the scope of their employment when they failed to properly execute their duties, failed to protect the plaintiff.

31. The individually named defendants and the John Does were performing actions to further their employer's (the city defendants) interest, or to carry out duties incumbent upon the employ in furthering the employer's business.

32. That by reason of the foregoing, plaintiff requests an award of damages, which exceeds the jurisdictional limits of all lower, courts which would otherwise have jurisdiction.

**THIRD CAUSE OF ACTION**

**MONELL CLAIM PURSUANT TO 42 U.S.C § 1981, 1983, 1985, 1986**  
**AND RESPONDEAT SUPERIOR**

33. Plaintiff repeats, reiterates and realleges each and every allegation contained herein as if fully set forth at length herein.

34. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies and practices of the NYPD which were in existence at the time of the conduct

alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of defendant NYPD.

35. Defendant NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

36. Defendants detained, arrested, assaulted, battered, and victimized plaintiff in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said assault and battery would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

37. Defendant NYPD has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable detention and/or arrest.

38. The direct and proximate results of the defendants' acts are that plaintiff suffered severe and permanent injuries of a physical and psychological nature.

**FOURTH CAUSE OF ACTION**  
**MUNICIPAL AND/OR GOVERNMENTAL LIABILITY**

39. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

40. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its

employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid detention, incarceration, violation of constitutional rights, and permanent psychological injuries to the plaintiffs; and were otherwise reckless, careless, and negligent.

41. That as a result of the above referenced negligence; Plaintiffs were caused to sustain damages and their constitutional rights were violated.

**FIFTH CAUSE OF ACTION**  
**EXCESSIVE FORCE**

42. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

43. Plaintiff did not resist the orders during the above described incident and did not take any actions necessitating the use of excessive physical force by defendants.

44. As a direct and proximate result of the unlawful excessive force used against plaintiff by defendants deprived plaintiff of his Constitutional rights in violation of the Fourth, Eighth and Fourteenth Amendments of the Constitution and are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

45. Defendant officers used excessive force against plaintiff with knowledge that plaintiff did not commit a crime and that the arrest and force used to effectuate the arrest was excessive, unnecessary and without cause or

grounds therefore.

**SIXTH CAUSE OF ACTION**  
**MALICIOUS PROSECUTION**

46. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

47. That one of or more than one of the defendant officers prepared formal accusatory instruments, with the knowledge that no crime or violation had occurred.

48. That one of or more than one of the defendant officers prepared and filed charges against plaintiffs with malice and the intent of depriving plaintiff of his liberty and right to not have their person seized knowing they had no cause or grounds to do so.

49. That one of or more than one of the Defendant officers prepared and filed these charges against Plaintiffs with the intent to deprive Plaintiffs of their constitutional rights.

50. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid pain and suffering, defamation, incarceration and permanent psychological injuries to the plaintiffs; and were otherwise reckless, careless and negligent.

**SEVENTH CAUSE OF ACTION**  
**ABUSE OF PROCESS**

51. Plaintiffs repeats, reiterates, and realleges all of the allegations set forth above.

52. Without plaintiff's consent, one or more of the defendant officers harmfully and offensively touched Plaintiffs by grabbing them, restraining them, handcuffing them, and unlawfully and unconstitutionally deprived the plaintiffs of their liberty and freedom.

53. That one or more of the defendant officers threatened plaintiff without justification, provocation or cause.

54. The defendants abused their authority and abused their position; Defendants abused and violated the public trust and in particular the trust of plaintiff. Defendants had no right under the laws of the land to detain, arrest, harass, incarcerate, or prosecute the plaintiffs, yet they chose to regardless. The defendant officers who did not detain, arrest, harass, incarcerate, or prosecute the Plaintiff, should there be any, are liable to plaintiff for their failure to protect and intervene, and a violation of their duty to intervene, safeguard, and protect the Plaintiff.

**EIGHTH CAUSE OF ACTION**  
**INFLICTION OF EMOTIONAL DISTRESS**

55. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

56. Defendants intentionally and deliberately inflicted emotional distress upon plaintiff; defendants negligently inflicted emotional distress upon plaintiff; by maliciously detaining him, assaulting him, restraining him, handcuffing him, falsely arresting him, threatening him; and depriving the plaintiff of his liberty and freedom, and in abusing plaintiff.

**TWELFTH CAUSE OF ACTION**  
**NEGLIGENCE**

57. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

58. That the aforesaid defendants, without cause or provocation, negligently, carelessly, and recklessly detained, arrested, and threatened the plaintiff despite knowing that no laws, rules, or regulations were violated, without grounds, and without cause.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, economic loss, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, costs, and

disbursements.

Dated: July 11, 2019  
Nassau County, NY

Yours, etc.,  
LAW OFFICES OF NORA CONSTANCE MARINO

  
BY: NORA CONSTANCE MARINO, ESQ.  
Attorneys for Plaintiffs  
175 East Shore Road, Suite 230  
Great Neck, NY 11023  
516-829-8399  
[nora@marinojustice.com](mailto:nora@marinojustice.com)  
File No.: 1626

**ATTORNEY VERIFICATION**

STATE OF NEW YORK     )  
                                  )  
COUNTY OF NASSAU    )     ss.:

**NORA CONSTANCE MARINO**, an attorney duly licensed to practice law, affirms under penalties of perjury, that I am the attorney of record for plaintiffs in the within action; that I have read the foregoing **COMPLAINT** and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiffs named herein, is that the plaintiffs resides in a different county then that which your deponent maintains her office.

DATED: July 11, 2019  
Nassau County, NY

AFFIRMED:

  
**NORA CONSTANCE MARINO**



[Bi:]

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF RICHMOND

Index No.:

EMMANUEL JALLAH,

*Petitioner,**- against -*

CITY OF NEW YORK, et al.

*Respondent.*

## SUMMONS AND COMPLAINT

Law Offices Of  
NORA CONSTANCE MARINO  
*Attorney for Plaintiff*  
*Office and Post Office Address, Telephone*  
175 East Shore Road  
Great Neck, New York 11023  
PHONE: 516.829.8399  
FAX: 516.829.4699

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: \_\_\_\_\_ 20\_\_

\_\_\_\_\_  
*Nora Constance Marino*

To :

Service of a copy of the within  
is hereby admitted.

Dated: \_\_\_\_\_ 20\_\_

Attorney(s) for:

## PLEASE TAKE NOTICE :

☐ NOTICE that the within is a (certified) true copy of a

OF ENTRY: duly entered in the office of the clerk of the within named court on 20

☐ NOTICE OF that an order of which the within is a true copy will be presented for settlement to the